

23NWCV00014 23NWCV00014

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-06-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CL%2C06%2F23%2F2026

Source SHA-256: eee83c8baab0312f3b52a0ea29d16a76e05bdb06cf1005e273dfec7759683bf0

Case Number: 23NWCV00014 Hearing Date: June 23, 2026 Dept: L

Defendant Amazon Logistics,

Inc.'s Motion to Bifurcate Trial is GRANTED.

Defendant to give notice.

Background

This is an action for wrongful

death regarding an accident that occurred on January 2, 2020. On January 3,

2023, Plaintiffs Mariano Altamirano and Graciela Altamirano, individually and

as successors-in-interest to Grisel Altamirano ("Plaintiffs") filed this action

against Defendants Kempt Transport Inc., Gurjit Singh, Supreme Transportation

Inc., nominal Defendant Valerii Sytnyk, and Does 1 to 10. The Complaint alleges

that Grisel Altamirano ("Decedent") was seated in the right front passenger

seat of a vehicle owned/operated by non-party Alejandro Garcia. The Complaint

alleges that Defendant Kempt Transport Inc.'s agent, Defendant Singh, was

acting in the scope of his employment when the accident occurred. Specifically,

Defendant Singh, while driving on the freeway in a truck owned by Defendant Supreme Transportation Inc., negligently collided with the vehicle Decedent was in. The Complaint alleges two cause of action for 1) Negligence, and 2) Wrongful Death.

On April 25, 2023, Defendants

Kempt Transport Inc. and Gurjit Singh filed the Cross-Complaint. The

Cross-Complaint was later dismissed without prejudice.

On August 1, 2023, Plaintiffs

amended the complaint to name Defendants Sukhvinder Singh and Amazon Logistics, Inc. as Does 1 and 2, respectively.

On October 17, 2023, Plaintiffs

requested dismissal of the Complaint without prejudice as to Defendants Supreme

Transportation Inc. and Sukhvinder Singh.

Defendant Amazon Logistics, Inc.

("Amazon") now moves to bifurcate trial into a liability phase and a damages phase.

Legal Standard

"The court, in furtherance of

convenience or to avoid prejudice, or when separate trials will be conducive to

expedition and economy, may order a separate trial of any cause of action,

including a cause of action asserted in a cross-complaint, or of any separate issues or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (Code Civ. Proc., § 1048, subd. (b).)

The court may order that "the

trial of any issue or any part thereof shall precede the trial of any other

issue or any part thereof in the case" when the convenience of witnesses, the

ends of justice, or the economy and efficiency of handling the litigation would

be promoted. (Code Civ. Proc., § 598.)

Discussion

Amazon argues that trial should

be bifurcated into a damages phase and a liability phase. Amazon argues that it

is likely to prevail on the issue of liability for two reasons. Firstly,

Defendant Singh was not acting in the course or scope of employment with Amazon,

and thus, Amazon is not vicariously liable. Second, the "sudden emergency"

doctrine bars Plaintiffs' claims against Amazon.

Amazon argues that bifurcation

will promote judicial efficiency, convenience of the parties, and the ends of

justice. Amazon asserts that defense verdict on the issue of liability will prevent

the need for resources to be spent on the issue of damages. There will be

minimal overlap in liability and damages evidence—for example, the issue of damages involves much more witnesses than the issue of liability. Further, separating the issues of liability and damages will minimize the possibility that a jury will overlook the issues of liability in order to compensate Plaintiff for damages out of sympathy. Lastly, bifurcation will streamline trial and encourage settlement.

In opposition, Plaintiff argues that Amazon cannot show a high probability of success on the issue of liability. Plaintiff asserts that the Amazon's sudden emergency defense is hotly contested by the evidence, as evidenced by the Court's denying of Amazon's Motion for Summary Judgment based on the defense. (See 5/12/26 Minute Order.) Further, the issue of whether Defendant Singh was an independent contractor employee of Amazon is highly fact-dependent. Thus, Amazon cannot demonstrate a high probability of prevailing on the issue of liability.

Plaintiff further argues that Amazon will suffer no prejudice if trial is not bifurcated. Any potential sympathy effect is mitigated by appropriate jury instructions and voir dire.

Only Plaintiffs will be prejudiced by bifurcation. Further, Plaintiff argues that interests in judicial economy are favored where the issues liability and damages arise from one event and overlap in proof. Specifically, facts relating to liability are also relevant to proving the extent and pain suffering

Decedent experienced for purposes of damages. Plaintiff notes that the newly amended Code of Civil Procedure section 377.34 (amended by SB 447) allows “a decedent’s personal representative or successor in interest to recover damages for a decedent’s pain, suffering, or disfigurement in a survival action if it was filed on or after January 1, 2022, and before January 1, 2026.” (Opp., 6:28, 7:1-2.) Lastly, Plaintiff argues that Amazon will have no incentive to settle the case before the liability phase.

Amazon reiterates its arguments in the reply.

Code of Civil Procedure section 598 was enacted by the legislature to avoid “the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff.” (Horton v. Jones (1972) 26

Cal.App.3d 952, 955.) Even in cases where there is some evidentiary overlap between what is needed to prove liability and what is needed to prove damages, so long as such repetition is minimal, bifurcation remains proper. (See Kaiser Steel Corp. v. Westinghouse Elec. Corp. (1976) (“Kaiser”) 55

Cal.App.3d 737, 746 “[W]hile some evidence relating to damages would also be necessary on the issue of liability, only a small fraction of the evidence would be repeated so that the ends of justice were served by bifurcation.”),

superseded by statute on other grounds as stated in *Billings v. Edwards*

(1981) 120 Cal.App.3d 238.)

The Court finds that bifurcation

is warranted under the circumstances. The Court is persuaded that the issue of

liability and the issue of damages largely involve separate evidence. The issue

of liability will involve a total of five witnesses (two percipient witness and

three expert witness). (Grosch Decl., ¶¶ 7-8, Exhs. D-E.) The trial on damages

will involve many more witnesses. For example, Plaintiff has designated eleven

non-retained witnesses to testify on post-accident treatment. (Grosch Decl., ¶

7, Exh. E.) Further, in light of the highly emotional nature of the case, the

Court finds that bifurcation will help to avoid sympathetic jurors deciding

Defendant is liable out of a desire to award damages to Plaintiffs.

The Court acknowledges that

certain evidence relevant to the issue of liability (e.g., the

circumstances surrounding the crash) will also be presented as to the issue of

damages (e.g., the Decedent's emotional and physical suffering). However,

the Court finds such overlap in evidence is minimal and does not outweigh

factors in favor of bifurcation. (See *Kaiser*, *supra*, 55 Cal.App.3d at p.

746.)

The Court clarifies that it does

not weigh on the probability that Amazon will succeed on the merits on the issue of liability. The Court only finds that the interests of judicial economy weigh in favor of a bifurcated trial.

Accordingly, Amazon's Motion to

Bifurcate Trial is granted.